

Court No. - 21

Case :- WRIT - C No. - 4797 of 2023

Petitioner :- M/S Sarasth Propbhild Pvt. Ltd.

Respondent :- Executive Engineer Electricity Urban Distribution Division
And 4 Others

Counsel for Petitioner :- Indra Bhan Yadav, Namit Srivastava

Counsel for Respondent :- C.S.C., Pranjali Mehrotra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Syed Qamar Hasan Rizvi, J.

Ref: C.M. Amendment Application No. NIL of 2023

The amendment application filed today in the Court is taken on record.

Office to register the application.

Heard counsel for the parties.

The amendment application is allowed. Let the amendment be incorporated within a week.

Put up as fresh on 24.02.2023.

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)

Order Date :- 17.2.2023

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Hon'ble Syed Qamar Hasan Rizvi, J.

The instant petition has been filed challenging the recovery citation dated 07.11.2022 for a sum of Rs. 2,47,75,915/-.

Sri Pranjal Mehrotra, learned counsel appearing for the respondent Electricity Department has placed on record the communication sent on 13.02.2023 by the Executive Engineer to the Additional District Magistrate(Revenue), Ghaziabad mentioning that having regard to an order passed on 16.07.2021 by this Court in previous writ petition of the petitioner, the recovery is being withdrawn and that decision will be taken under Clause 6.5 of the U.P. Electricity Supply Code, 2005 in terms of the previous order.

Sri Namit Srivastava, counsel for the petitioner submits that the respondent Electricity Department had required the petitioner to deposit 50% of the amount mentioned in recovery certificate as a condition precedent for deciding the complainant under Clause 6.5 of the U.P. Electricity Supply Code, 2005. He submits that thereunder, the consumer is required to deposit an amount equal to the sum claimed from him or the electricity charges calculated on the basis of average of electricity bills of the preceding six months, whichever is less. He submits that without making the said calculation and determining which of the two amounts is less, the respondent had directed the petitioner to deposit 50% of the amount mentioned in the

recovery certificate.

Sri Pranjal Mehrotra, counsel for the respondent Electricity Department states that the department will make calculation in terms of the above provision and inform the amount to the petitioner within two weeks and upon deposit of such amount, the complaint will be decided.

Accordingly and with consent of counsel for both the parties, the petition stands disposed of in terms of the statements made by them before this Court.

Order Date :- 24.2.2023

Abhishek Gupta

(Syed Qamar Hasan Rizvi,J.) (Manoj Kumar Gupta,J.)